

Senate File 167

H-1010

1 Amend Senate File 167, as passed by the Senate, as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 STATE AND CATEGORICAL PERCENT OF GROWTH AND PROPERTY TAX
6 REPLACEMENT PAYMENTS

7 Section 1. Section 257.8, subsections 1 and 2, Code 2025,
8 are amended to read as follows:

9 1. *State percent of growth.* ~~The state percent of growth for~~
10 ~~the budget year beginning July 1, 2022, is two and one-half~~
11 ~~percent.~~ The state percent of growth for the budget year
12 beginning July 1, 2023, is three percent. The state percent
13 of growth for the budget year beginning July 1, 2024, is two
14 and one-half percent. The state percent of growth for the
15 budget year beginning July 1, 2025, is two and twenty-five
16 hundredths percent. The state percent of growth for each
17 subsequent budget year shall be established by statute which
18 shall be enacted within thirty days of the transmission of the
19 governor's budget required by February 1 under [section 8.21](#)
20 during the regular legislative session beginning in the base
21 year.

22 2. *Categorical state percent of growth.* ~~The categorical~~
23 ~~state percent of growth for the budget year beginning July~~
24 ~~1, 2022, is two and one-half percent.~~ The categorical state
25 percent of growth for the budget year beginning July 1, 2023,
26 is three percent. The categorical state percent of growth for
27 the budget year beginning July 1, 2024, is two and one-half
28 percent. The categorical state percent of growth for the
29 budget year beginning July 1, 2025, is two and twenty-five
30 hundredths percent. The categorical state percent of growth
31 for each budget year shall be established by statute which
32 shall be enacted within thirty days of the transmission of the
33 governor's budget required by February 1 under [section 8.21](#)
34 during the regular legislative session beginning in the base
35 year. The categorical state percent of growth may include

1 state percents of growth for the teacher salary supplement, the
2 professional development supplement, the early intervention
3 supplement, the teacher leadership supplement, and for budget
4 years beginning on or after July 1, 2020, transportation equity
5 aid payments under [section 257.16C](#).

6 Sec. 2. Section 257.16B, subsections 1 and 2, Code 2025, are
7 amended to read as follows:

8 1. For each fiscal year beginning on or after July 1, 2022
9 2023, there is appropriated from the general fund of the state
10 to the department of education an amount necessary to make all
11 school district property tax replacement payments under this
12 section, as calculated in [subsection 2](#).

13 ~~2. a. (1) For the budget year beginning July 1, 2022,~~
14 ~~the amount of each school district's property tax replacement~~
15 ~~payment shall be the product of the school district's weighted~~
16 ~~enrollment for the budget year multiplied by the per pupil~~
17 ~~property tax replacement amount for the budget year calculated~~
18 ~~under subparagraph (2).~~

19 ~~(2) The per pupil property tax replacement amount for the~~
20 ~~budget year beginning July 1, 2022, is equal to the sum of one~~
21 ~~hundred fifty-three dollars plus the difference between the~~
22 ~~following:~~

23 ~~(a) The regular program state cost per pupil for the budget~~
24 ~~year beginning July 1, 2022, multiplied by one hundred percent~~
25 ~~less the regular program foundation base per pupil percentage~~
26 ~~pursuant to [section 257.1](#) for the budget year beginning July~~
27 ~~1, 2022.~~

28 ~~(b) The regular program state cost per pupil for the budget~~
29 ~~year beginning July 1, 2021, multiplied by one hundred percent~~
30 ~~less the regular program foundation base per pupil percentage~~
31 ~~pursuant to [section 257.1](#) for the budget year beginning July~~
32 ~~1, 2022.~~

33 ~~b. a.~~ (1) For the budget year beginning July 1, 2023,
34 the amount of each school district's property tax replacement
35 payment shall be the product of the school district's weighted

1 enrollment for the budget year multiplied by the per pupil
2 property tax replacement amount for the budget year calculated
3 under subparagraph (2).

4 (2) The per pupil property tax replacement amount for the
5 budget year beginning July 1, 2023, is equal to the sum of one
6 hundred fifty-three dollars plus the difference between the
7 following:

8 (a) The regular program state cost per pupil for the budget
9 year beginning July 1, 2023, multiplied by one hundred percent
10 less the regular program foundation base per pupil percentage
11 pursuant to [section 257.1](#) for the budget year beginning July
12 1, 2023.

13 (b) The regular program state cost per pupil for the budget
14 year beginning July 1, 2021, multiplied by one hundred percent
15 less the regular program foundation base per pupil percentage
16 pursuant to [section 257.1](#) for the budget year beginning July
17 1, 2023.

18 ~~e.~~ b. (1) For ~~each~~ the budget year beginning ~~on or after~~
19 July 1, 2024, the amount of each school district's property
20 tax replacement payment shall be the product of the school
21 district's weighted enrollment for the budget year multiplied
22 by the per pupil property tax replacement amount for the budget
23 year calculated under subparagraph (2).

24 (2) The per pupil property tax replacement amount for
25 the budget ~~years~~ year beginning ~~on or after~~ July 1, 2024, is
26 equal to the sum of one hundred fifty-three dollars plus the
27 difference between the following:

28 (a) The regular program state cost per pupil for the budget
29 year beginning July 1, 2024, multiplied by one hundred percent
30 less the regular program foundation base per pupil percentage
31 pursuant to [section 257.1](#) for the ~~applicable~~ budget year ~~under~~
32 ~~this paragraph~~ beginning July 1, 2024.

33 (b) The regular program state cost per pupil for the budget
34 year beginning July 1, 2021, multiplied by one hundred percent
35 less the regular program foundation base per pupil percentage

1 pursuant to section 257.1 for the applicable budget year under
2 ~~this paragraph~~ beginning July 1, 2024.

3 c. (1) For each budget year beginning on or after July
4 1, 2025, the amount of each school district's property
5 tax replacement payment shall be the product of the school
6 district's weighted enrollment for the budget year multiplied
7 by the per pupil property tax replacement amount for the budget
8 year calculated under subparagraph (2).

9 (2) The per pupil property tax replacement amount for budget
10 years beginning on or after July 1, 2025, is equal to the sum
11 of one hundred fifty-three dollars plus the difference between
12 the following:

13 (a) The regular program state cost per pupil for the budget
14 year beginning July 1, 2025, multiplied by one hundred percent
15 less the regular program foundation base per pupil percentage
16 pursuant to section 257.1 for the applicable budget year under
17 this paragraph.

18 (b) The regular program state cost per pupil for the budget
19 year beginning July 1, 2021, multiplied by one hundred percent
20 less the regular program foundation base per pupil percentage
21 pursuant to section 257.1 for the applicable budget year under
22 this paragraph.

23 Sec. 3. EFFECTIVE DATE. This division of this Act, being
24 deemed of immediate importance, takes effect upon enactment.

25 DIVISION II

26 STATE COST PER PUPIL

27 Sec. 4. Section 257.9, subsection 2, Code 2025, is amended
28 to read as follows:

29 *2. Regular program state cost per pupil for 1992-1993 and*
30 *succeeding years.*

31 *a. For the budget year beginning July 1, 1992, and*
32 *succeeding budget years beginning before July 1, 2018, the*
33 *regular program state cost per pupil for a budget year is the*
34 *regular program state cost per pupil for the base year plus the*
35 *regular program supplemental state aid for the budget year.*

1 *b.* For the budget year beginning July 1, 2018, the regular
2 program state cost per pupil is the regular program state
3 cost per pupil for the base year plus the regular program
4 supplemental state aid for the budget year, plus five dollars.

5 *c.* For the budget year beginning July 1, 2019, the regular
6 program state cost per pupil is the regular program state
7 cost per pupil for the base year plus the regular program
8 supplemental state aid for the budget year, plus five dollars.

9 *d.* For the budget year beginning July 1, 2020, the regular
10 program state cost per pupil is the regular program state
11 cost per pupil for the base year plus the regular program
12 supplemental state aid for the budget year, plus ten dollars.

13 *e.* For the budget year beginning July 1, 2021, the regular
14 program state cost per pupil is the regular program state
15 cost per pupil for the base year plus the regular program
16 supplemental state aid for the budget year, plus ten dollars.

17 *f.* For the budget year beginning July 1, 2022, the regular
18 program state cost per pupil is the regular program state
19 cost per pupil for the base year plus the regular program
20 supplemental state aid for the budget year, plus five dollars.

21 *g.* For the budget ~~year~~ years beginning July 1, 2023, and
22 ~~succeeding budget years~~ July 1, 2024, the regular program state
23 cost per pupil for a budget year is the regular program state
24 cost per pupil for the base year plus the regular program
25 supplemental state aid for the budget year.

26 *h.* For the budget year beginning July 1, 2025, the regular
27 program state cost per pupil is the regular program state
28 cost per pupil for the base year plus the regular program
29 supplemental state aid for the budget year, plus ten dollars.

30 *i.* For the budget year beginning July 1, 2026, and
31 succeeding budget years, the regular program state cost per
32 pupil for a budget year is the regular program state cost per
33 pupil for the base year plus the regular program supplemental
34 state aid for the budget year.

35 Sec. 5. EFFECTIVE DATE. This division of this Act, being

1 deemed of immediate importance, takes effect upon enactment.

2 DIVISION III

3 SUPPLEMENTARY WEIGHTING FOR SHARED OPERATIONAL FUNCTIONS

4 Sec. 6. Section 257.11, subsection 5, paragraph d, Code
5 2025, is amended to read as follows:

6 d. Supplementary weighting pursuant to this subsection shall
7 be available to a school district during the period commencing
8 with the budget year beginning July 1, 2014, through the budget
9 year beginning July 1, 2034. The For budget years beginning
10 prior to July 1, 2025, the maximum amount of additional
11 weighting for which a school district shall be eligible in a
12 budget year is twenty-one additional pupils; and for budget
13 years beginning on or after July 1, 2025, the maximum amount
14 of additional weighting for which a school district shall be
15 eligible in a budget year is twenty-five pupils; provided,
16 however, that for budget years beginning on or after July
17 1, 2024, the supplementary weighting assigned for a shared
18 operational function in the area of a college and career
19 transition counselor or coordinator shall not count toward this
20 maximum amount. Criteria for determining the qualification
21 of operational functions for supplementary weighting shall be
22 determined by the department by rule, through consideration of
23 increased student opportunities.

24 Sec. 7. EFFECTIVE DATE. This division of this Act, being
25 deemed of immediate importance, takes effect upon enactment.

26 DIVISION IV

27 TRANSPORTATION EQUITY PAYMENTS

28 Sec. 8. Section 257.16C, subsection 3, paragraph d,
29 subparagraph (4), unnumbered paragraph 1, Code 2025, is amended
30 to read as follows:

31 For each the fiscal year beginning on or after July 1,
32 2023, and the fiscal year beginning July 1, 2024, there
33 is appropriated from the general fund of the state to the
34 department of management for deposit in the transportation
35 equity fund the sum of the following, or so much thereof as is

1 2. a. Moneys appropriated to the department of education
2 under this section shall be used to provide a funding
3 supplement to each school district during the fiscal year
4 beginning July 1, 2025, and ending June 30, 2026.

5 b. Each school district's funding supplement amount shall
6 be equal to the amount of the appropriation under subsection
7 1 multiplied by the quotient of the school district's budget
8 enrollment for the budget year beginning July 1, 2025, and
9 ending June 30, 2026, divided by the statewide total budget
10 enrollment for the budget year beginning July 1, 2025, and
11 ending June 30, 2026.

12 c. Moneys received by a school district under this section
13 may be used for any school general fund purpose, shall be
14 miscellaneous income for purposes of chapter 257, and shall not
15 be included in district cost.

16 3. The payment of funding supplement amounts under this
17 section shall be paid by the department of education at the
18 same time and in the same manner as foundation aid is paid
19 under section 257.16 for the fiscal year beginning July 1,
20 2025, and ending June 30, 2026, and may be included in the
21 monthly payment of state aid under section 257.16, subsection
22 2.

23 Sec. 12. EFFECTIVE DATE. This division of this Act, being
24 deemed of immediate importance, takes effect upon enactment.>

25 2. Title page, by striking lines 1 through 5 and inserting
26 <An Act relating to public school funding by establishing the
27 state percent of growth and the categorical state percent of
28 growth for the budget year beginning July 1, 2025, modifying
29 provisions relating to the property tax replacement payments
30 and transportation equity payments, modifying provisions
31 relating to the regular program state cost per pupil and
32 funding for shared operational functions, establishing a
33 school district funding supplement, making appropriations, and
34 including effective date provisions.>

GEHLBACH of Dallas